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Judgment Sheet
IN THE LAHORE HIGH COURT
LAHORE
Judicial Department
C.R.No.51026 of 2024

Maqsood Ahmed.

Versus

Khalid Mehmood.

JUDGMENT

Date of hearing: 24.04.2025

Petitioner by: Rana Abdul Ghaffar Khan, Advocate

Respondent by: Mr. Ahmed Raza Bajwa and
Muhammad Sajid Mirani, Advocates

MUZAMIL AKHTAR SHABIR, J: Through this Civil Revision, the petitioner, who was the plaintiff before the trial court, has called in question judgments and decrees dated 16.01.2024 and 16.04.2024 passed by the courts below, whereby suit for possession of land through preemption filed by the petitioner has concurrently been dismissed.

2. Learned counsel for the petitioner states that although through evidence available on the record performance of *Talabs* has been sufficiently proved yet the courts below by misreading of relevant record have dismissed the suit, which judgments are liable to be set-aside and suit merited to be decreed.

3. On the other hand, learned counsel for the respondent has defended the impugned judgments and decrees by stating that the petitioner has failed to establish performance of *Talabs* and did not have any superior right of preemption, whereas in order to prove his claim, the petitioner through cogent evidence was required to establish his superior right with performance of *Talab-i-Muwathibat* and *Talb-i-Ishhad* accompanied by filing of suit within time.

4. Brief facts necessary for disposal of this Civil Revision as per plaint are that the petitioner filed a suit for possession through pre-emption regarding land measuring 04-Kanals 08-Marlas along with Shamlat, forming part of Khewat No. 145, Khatooni Nos. 365 to 388, out of a total land having area of 230 Kanals 10 Marlas, situated in Mahal Aura, Tehsil and District Sialkot. The property was originally owned by one Mst. Ghulam Fatima, who sold it to the respondent via Sale Mutation No. 3790 dated 30.06.2018, for consideration of Rs. 2,500,000/-. The petitioner claimed to have attained knowledge of the sale at approximately 5:00 p.m. on 07.09.2018 through his brother Mehmood Ahmad, in the presence of Maqbool Ahmad and Aziz Ali, at his shop situated in Aura Chowk. Upon acquiring this knowledge, the petitioner immediately expressed his intention to pre-empt the sale. He obtained a copy of the mutation on 10.09.2018 and issued a notice of *Talab-i-Ishhad* to the respondent on 11.09.2018. The petitioner asserts to have a superior right of pre-emption and claims to have duly performed the required *Talabs* under the law.

5. In plaintiff's evidence, Muhammad Rashid, record keeper of General Post Office (GPO), Sialkot appeared as PW-1 and produced receipt No. 1436 issued by the GPO as ExP1. Muhammad Saleem postman/employee of GPO Sialkot appeared as PW-2 and stated that he had gone to deliver the registered mail and met Khalid Mehmood, addressee of the mail, who refused to receive the same as incorrect paternity had been mentioned on the envelope, however stated that he had not got any witness recorded to that effect and further stated that he did not remember that the same was accompanied by acknowledgement due card. The petitioner/plaintiff himself appeared as PW-3 and supported his claim through evidence recorded by him and produced copies of Notice for Talb-i-ishhad as Mark A, which bore his signatures as Mark A/1. Choudhary Mehmood Ahmed informer appeared as PW-4 and supported performance of Talb-i-Muwathibat and Talb-i-Ishhad being signatory to the said notice. Choudhary Maqbool Ahmed as PW-5 being other signatory of notice of Talb-i-Ishhad also got recorded his statement regarding due performance of Talb-i-Muwathibat and Talb-i-

Ishhad. In documentary evidence learned counsel for the plaintiff produced certified copy of record of rights for the year 2012-13 as Exh.P2, certified copy of mutation No. 3790 as Exh. P.3, certified copy of produce takhmina as Exh. P.4 and closed the evidence of plaintiff. From the respondent side, respondent himself appeared as DW-1. In documentary evidence learned counsel for the respondent produced copy of mutation No. 3790 as Mark-A and closed the evidence of respondent. It is settled by now that the parties to the proceedings are required to produce documentary evidence while recording their own oral evidence and documents produced in the statement of the counsel cannot be relied upon as opportunity to cross-examine is not available against the statement of counsel, hence, as such documents could not be validly tendered in the evidence of the counsel, the same cannot be relied upon in support to the claim of the party. Reliance is this behalf has been placed on principles laid down in Federation of Pakistan through Secretary, Ministry of Defence Rawalpindi and another v. Messrs Farrukh International (Pvt.) Ltd. through Proprietor (2023 SCMR 1118), Rustam and others v. Jehangir (deceased) through L.Rs. (2023 SCMR 730), Mst. Akhtar Sultana v. Major Retd. Muzaffar Khan Malik through his legal heirs and others (PLD 2021 SC 715) Manzoor Hussain (deceased) through L.Rs. v. Misri Khan (PLD 2020 SC 749) and Federation of Pakistan through Secretary Ministry of Defence and another v. Jaffar Khan and others (PLD 2010 SC 604).

6. Issue No. 2 related to performance of *Talabs* in accordance with law. It is settled by now that only the complete chain of events including the source of information of the sale can establish the essential elements of *Talab-i-Muwathibat*, which are (i) the time, date and place when the pre-emptor obtained the first information of the sale and; (ii) the immediate declaration of his intention by the pre-emptor to exercise his right of pre-emption, then and there, on obtaining such information. The petitioner while deposing as PW-3 contrary to time mentioned by him in his plaint stated that on 07.09.2018 at about 4 p.m when he was sitting in his shop situated at Aura Chowk, he learned about sale transaction in favour of the respondent in

presence of Maqbool Ahmad and Aziz Ali and through informer, hence, his evidence did not support his own plea of time mentioned in plaint whereas PW-4 and 5, who were respectively informer and witness accompanying with him when he was sitting in the shop mentioned that information about sale was provided at about 5 p.m, therefore, although they have supported the claim of the petitioner that he performed Talab-i-Muwathibat at 05.00 p.m mentioned in his plaint but are inconsistent with the statement of the petitioner that said Talab was performed at about 4 p.m. PW-5 was even otherwise silent about the date of making Talab-i-Muwathibat and did not mention name of witnesses present with him when said Talab was made, however, time was specified as 5.00 p.m. Hence, due to said inconsistency between evidence of petitioner and his witnesses Talab-i-Muwathibat was not established. Moreover, PW-2/Muhammad Salim stated that the petitioner had incorporated wrong parentage of respondent upon envelop of registered letter through which notice of Talab-i-Ishhad had been sent and the PW-2 was not sure whether the said envelope was accompanied by Acknowledge due card (A.D card), therefore, service was not properly made due to different father's names and having not been accompanied with acknowledgement due card which was a legal requirement. Moreover, the Record Keeper from GPO/PW-1 who appeared in evidence to produce receipt Exh.P1 stated that he was unable to read the address of the respondent/defendant over receipt Exh. P1. Although it is claimed by PW-2 that on refusal of the respondent to receive envelop, the same was returned back but said original returned envelop has not been produced in evidence and he further stated that no evidence from area was recorded relating to refusal of the defendant to receive envelop. Hence, Talab-i-Ishhad was also not proved. Moreover, in judgment titled as Hasham Khan (deceased) through LRs versus Waheed Ahmed (2024 SCMR 353), it was held that it was mandatory for the petitioner to get recorded the statement of Advocate, who drafted notices by appearing as a witness, which was not done in the present case and hence Talab-i-Ishhad has also not established on this account as well. The relevant portion of the judgment is reproduced below:-

"The alleged notice of Talb-i-Ishhad Exh.P3 in both the suits is allegedly by Mr. Ahmad Nawaz Khan, Advocate on behalf of the respondent-plaintiff, though the said notice contains the signatures of the plaintiff but Mr. Ahmad Nawaz Khan, Advocate was required to prove the notice when he issued the notice on behalf of the plaintiff to the vendee. The language of the notice states that on behalf of the plaintiff the learned Advocate is issuing the notice, therefore, it was required that learned counsel should have appeared before the Court in witness box to prove the same. There is a further defect that registered post was sent on a village address whereas the plaintiff admitted in cross-examination that the vendee/defendant is living in Dubai."

7. From what has been discussed above, the petitioner did not prove the performance of requisite Talabs as evidence of his witnesses has failed to establish its mandatory ingredients, which are prerequisite condition for seeking decree for possession through preemption, therefore, no ground to interfere in the impugned judgments, whereby the suit for possession through preemption filed by the petitioner has been dismissed, is made out. Hence, further grounds relating to superior right etc. need not be addressed at this stage as the same would not be of any benefit to the petitioner even if established on record. Even otherwise the findings recorded by the courts below are based on proper appreciation of facts of the case, evidence available on record and law on the subject and do not suffer from misreading and non-reading, illegality or jurisdictional defect for this Court to warrant interference, hence, the instant Civil Revision being devoid of any merit is dismissed.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Zeeshan Khan

APPROVED FOR REPORTING

JUDGE